

Opinion of the Court

inadequate-care claim under the Eighth Amendment, see *Carlson v. Green*, 446 U. S. 14 (1980).

Since these cases, the Court has not implied additional causes of action under the Constitution. Now long past “the heady days in which this Court assumed common-law powers to create causes of action,” *Malesko*, 534 U. S., at 75 (Scalia, J., concurring), we have come “to appreciate more fully the tension between” judicially created causes of action and “the Constitution’s separation of legislative and judicial power,” *Hernández*, 589 U. S., at —. At bottom, creating a cause of action is a legislative endeavor. Courts engaged in that unenviable task must evaluate a “range of policy considerations . . . at least as broad as the range . . . a legislature would consider.” *Bivens*, 403 U. S., at 407 (Harlan, J., concurring in judgment); see also *post*, at 503 (GORSUCH, J., concurring in judgment). Those factors include “economic and governmental concerns,” “administrative costs,” and the “impact on governmental operations systemwide.” *Ziglar*, 582 U. S., at 134, 136. Unsurprisingly, Congress is “far more competent than the Judiciary” to weigh such policy considerations. *Schweiker*, 487 U. S., at 423. And the Judiciary’s authority to do so at all is, at best, uncertain. See, *e. g.*, *Hernández*, 589 U. S., at —.

Nonetheless, rather than dispense with *Bivens* altogether, we have emphasized that recognizing a cause of action under *Bivens* is “a disfavored judicial activity.” *Ziglar*, 582 U. S., at 135 (internal quotation marks omitted); *Hernández*, 589 U. S., at — (internal quotation marks omitted). When asked to imply a *Bivens* action, “our watchword is caution.” *Hernández*, 589 U. S., at —. “[I]f there are sound reasons to think Congress might doubt the efficacy or necessity of a damages remedy[,] the courts must refrain from creating [it].” *Ziglar*, 582 U. S., at 137. “[E]ven a single sound reason to defer to Congress” is enough to require a court to refrain from creating such a remedy. *Nestlé USA, Inc. v. Doe*, 593 U. S. —, — (2021) (plurality opinion). Put an-